

Contracts
Loring v. City Of Boston
7 Metc. 409, 48 Mass. 409 (1844)

Keyword Subject

Unilateral Contract, Assumpsit, Revocation

Facts

In May of 1837, Defendant posted a number of advertisements in daily papers in Boston offering "\$500 reward... offered for the apprehension and conviction of any person who shall set fire to any building within the limits of the city." The next day, a signed version of the advertisements were published that doubled the reward. After another fire in 1841, Plaintiffs came to suspect Samuel Marriott for the arson and tracked Marriott to New York. After finding him and returning him to Boston, they found all the necessary witnesses and evidence and secured a conviction for the fire. However, when plaintiff requested payment they were denied.

Procedural History

Trial Court: In favor of Defendant

Appeal: In favor of Defendant

Issue

Can an offer that is four years old be accepted because it was never formally withdrawn?

Holding: No; Judgment Affirmed

Principle

A unilateral contract is subject to the conditional requirements it lays out as well as a "reasonable time" in which to accept the offer

Reasoning

Separate Opinions

Notes